

2017 P L C (C.S.) 630

[Lahore High Court]

Before Jawad Hassan, J

MUHAMMAD YOUNIS

Versus

The SUPERINTENDING ENGINEER and others

Writ Petition No.39771 of 2016, decided on 20th December, 2016.

Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974---

---R. 17-A--- Constitution of Pakistan, Art.199--- Constitutional petition---Maintainability--- Contract appointment---Regularization of service---Scope---Petitioner employee was appointed on contract basis in place of his father who, on account of ailment, retired from service---Service of employee was terminated due to his absence from duty---Validity--- Petitioner employee was appointed on contract basis under R.17-A of Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974---Employee after accepting the terms and conditions of his contract employment submitted his joining report---Petitioner as per employment contract had no right to claim regularization of his service under any circumstances---Such employee could be terminated without assigning any reason--- Petitioner remained absent from duty for a considerable period of time, he had violated the terms and conditions of his service---When employment was on contract, it would be a relationship of "master and servant"---Constitutional petition would not be maintainable in such matters---If employee on contract was aggrieved of his termination, the only remedy was claim of damages---No direction could be issued to force the unwilling employer to keep the employee in service---Impugned order had been passed by the Competent Authority after hearing the petitioner---No illegality had been committed while turning down departmental appeal of the petitioner---Constitutional petition was dismissed in limine.

Lt. Col. Rtd. Aamir Rauf v. Federation of Pakistan through Secretary M/o Defence and 3 others 2011 PLC (C.S.) 654 and Nadeem Ahmed v. Pakistan State Oil Company Limited and another 2005 PLC (C.S.) 1447 rel.

Suhail Shafiq for Petitioner.

Ashfaq Ahmad Kharral, Assistant Advocate General for Respondents.

ORDER

JAWAD HASSAN, J.--- Through the instant petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the Constitution) the Petitioner while challenging the legality of order dated 15.09.2016 has sought his reinstatement in service as regular employee with all back benefits.

2. Brief facts of the case are that the Petitioner was appointed on contract basis under section 17-A of Punjab Civil Servant (Appointment and Conditions of Service) Rules, 1974 (the Rules) in place of his father who on the basis of ailment retired from service. It is further alleged that the services of the Petitioner were terminated due to his absence which was due to unavoidable circumstances. It is further stated that the Petitioner filed application on 26.08.2014 for rejoining his duty but the same was not considered whereupon the Petitioner filed W.P. No.21754/2016, in pursuance of which the Respondent No.3 decided his application while turning down his request vide the impugned order. Hence, the instant petition.

3. Learned counsel for the Petitioner submitted that the absence of the Petitioner was not deliberate rather due to unavoidable circumstances as his father was a Heart patient. Learned counsel further contended that the Petitioner was to be considered as a regular employee rather a contractual employee and cannot be terminated in a straight way without adopting legal course.

4. Learned Law Officer on Court's call submitted that the termination of the petitioner has rightly been made as he remained absent for a considerable period of time.

5. From the perusal of record it reveals that the Petitioner was appointed on purely contract basis under Rule 17-A of the Punjab Civil Servant (Appointment and Conditions of Service) Rules, 1974 vide appointment letter dated 04.02.2009. The petitioner after accepting the terms and conditions of his contract employment submitted his joining report on 06.02.2009. Clause 11 of the employment contract, containing certain terms and conditions, reveals that the, Petitioner would have no right to claim regularization of his services under any circumstances. Further, Clause 18 of the said contract explicitly depicts that the services of the Petitioner can be terminated without assigning any reason. The contention of the learned counsel for the Petitioner that he was to be considered as regular employee badly failed, because the employment contract specifically bars the Petitioner to claim regularization as a matter of right. Moreover, admittedly, the petitioner remained absent from duty for a considerable period of time which resulting into his termination and Clause 7 of the appointment letter specifically deals with the issue and oust the Petitioner from accruing any right in his favour. The Petitioner willfully absented himself from service and has also violated the terms and conditions of his service.

6. It is an established principle that where employment is on contract, there is a relationship of master and servant and in such like cases the constitutional petition under Article 199 of the Constitution is not maintainable. In case titled Lt. Col. Rtd. Aamir Rauf v. Federation of Pakistan through Secretary M/o Defence and 3 others (2011 PLC (C.S.) 654), it has been held that if an employee working on contract basis is aggrieved of his termination the only remedy available was an action for damages and no direction could be issued to force the unwilling employer to keep the petitioner in service. Similar principle was laid down by the Hon'ble Supreme Court of Pakistan in case titled Nadeem Ahmed v. Pakistan State Oil Company Limited and another (2005 PLC (C.S.) 1447).

7. Furthermore, the impugned order has been passed by the competent authority after hearing the Petitioner which does not show any illegality while turning down the appeal of the Petitioner.

8. In view of above, the instant petition is without any merit and is accordingly dismissed in limine.

ZC/M-2/L Petition dismissed.